

**CASE FILING STATEMENT – Information Only; Not Retained in Case Records**

Provide the Case File No. for the record you are filing into or the Case Type if initiating a new action: 2026-CR-900123-EXTENDED-CASE-IDENTIFIER

\*A list of case types and party roles can be found on [South Dakota Unified Judicial Attorney forms and Documents](#) webpage.

**Social Security Numbers (not Driver's License Numbers) must be provided for divorce, child support, & paternity cases, 42 USC 666(a)(13)(B).** All filers are **required** to provide the SSN **or** DL# for each of **their** participants regardless of the case type. Business entities must provide the EIN number in lieu of SSN or DL#.

**INFORMATION FOR PLAINTIFF/PETITIONER/APPLICANT:**

|                                                                             |                                                 |                       |                              |
|-----------------------------------------------------------------------------|-------------------------------------------------|-----------------------|------------------------------|
| Oyelaran Fitzwilliam                                                        | Alexandrina-Katharine                           | Montgomery-Vandenberg |                              |
| Last/Business Name                                                          | First Name                                      | Middle                | Suffix                       |
| 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B | Unincorporated Township of Long Hollow Crossing | SD                    | 01234-9999                   |
| Physical Address                                                            | City                                            | State                 | Zip                          |
| <input checked="" type="checkbox"/> Check is Same as Mailing                |                                                 |                       |                              |
| Mailing Address                                                             | City                                            | State                 | Zip                          |
| 555-0142 ext. 44821                                                         |                                                 |                       |                              |
| Home                                                                        | Work                                            | Cell                  |                              |
|                                                                             | 1991-04-17                                      |                       |                              |
| Social Security No.                                                         | Date of Birth                                   | Driver's License No.  | State Employed ID (Business) |
| <b>Attorney:</b>                                                            |                                                 |                       |                              |
| Last Name                                                                   | First Name                                      | State Bar ID No.      |                              |
| Mailing Address                                                             | City                                            | State                 | Zip                          |
| Phone                                                                       |                                                 |                       |                              |

**INFORMATION FOR DEFENDANT/RESPONDENT/MINOR/DECEDENT/PERSON IN NEED OF PROTECTION**

|                                                   |               |                      |                              |
|---------------------------------------------------|---------------|----------------------|------------------------------|
| Last/Business Name                                | First Name    | Middle               | Suffix                       |
| Physical Address                                  | City          | State                | Zip                          |
| <input type="checkbox"/> Check is Same as Mailing |               |                      |                              |
| Mailing Address                                   | City          | State                | Zip                          |
| Home                                              | Work          | Cell                 |                              |
| Social Security No.                               | Date of Birth | Driver's License No. | State Employed ID (Business) |
| <b>Attorney:</b>                                  |               |                      |                              |
| Last Name                                         | First Name    | State Bar ID No.     |                              |
| Mailing Address                                   | City          | State                | Zip                          |
| Phone                                             |               |                      |                              |

## **INSTRUCTIONS AND FORMS ON MOTION FOR EXPUNGEMENT**

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at [ujssrlhelp@uds.state.sd.us](mailto:ujssrlhelp@uds.state.sd.us).

### **To complete these forms, you will need to:**

- 1) Complete the Motion for Expungement UJS-391A by:
  - a) Fill in the caption by entering the name of the county you are filing in and listing your name on the line provided as the Petitioner. (The county you file in will be the same county where the arrest record or case is filed in.)
  - b) The case number will be provided to you by the Clerk of Court at the time of filing.
  - c) Fill in the remainder of UJS-391A on the lines provided and select the appropriate basis for the Motion.
  - d) Sign, date, and file with the Clerk of Court along with the Case Filing Statement UJS-232 and pay the \$72 filing fee.
- 2) Complete only the caption of the Admission of Service UJS-391B. The remainder of the form will need to be completed by the States Attorney and/or their office who handled your criminal case.
- 3) Mail a copy of the Motion for Expungement UJS-391A, the partially completed Admission of Service UJS-391B, and a self-addressed stamped envelope to the States Attorney and/or their office who handled your criminal case.
  - a) The States Attorney will need to sign the Admission of Service UJS-391B as proof of service that they received your Motion for Expungement.
- 4) Complete the Statement of Mailing UJS-391C once you have mailed a copy of your Motion for Expungement UJS-391A and Admission of Service UJS-391B to the States Attorney.
- 5) File the Statement of Mailing UJS-391C with the Clerk of Court.
- 6) File the Admission of Service UJS-391B with the Clerk of Court once you receive it back from the States Attorney.

IN CIRCUIT COURT

JUDICIAL CIRCUIT

|                                                                                                                                                                                                                  |                                                                                                      |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|
| <p>IN THE MATTER OF THE EXPUNGEMENT<br/>OF RECORDS RELATED TO:</p> <p><u>Alexandrina-Katharine Montgomery-Vandenberg-Oyeleran Fitzwilliam</u><br/><i>(Name of Applicant for Expungement)</i><br/>Petitioner.</p> | <p>Case No.: <u>2026-CR-900123-EXTENDED-CASE-IDENTIFIER</u></p> <p><b>MOTION FOR EXPUNGEMENT</b></p> |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|

Pursuant to SDCL § 23A-3-27, Petitioner, whose date of birth is 1991-04-17,  
(enter your date of birth)  
hereby moves this court for entry of an order expunging the record of the Petitioner's arrest  
or ticket, which occurred on 2019-03-08. The arrest or ticket  
(insert the date of your arrest or date you received your ticket)  
was for the following charge(s): Arrest record sought to be expunged. The  
(enter what you were charged with)  
criminal docket number is: 2026-CR-900123-EXTENDED-CASE-IDENTIFIER.

The basis for this motion is (check the applicable line):

- ☒ It has been one year from the date of the arrest and no accusatory instrument has been filed;
- ☐ The prosecuting attorney formally dismissed the entire criminal case on the record AND (if this option is checked, check one of the options below):
- ☐ It has been more than a year since the formal dismissal; **or**
- ☐ Compelling necessity exists;
- ☐ I was acquitted of all charges at trial on \_\_\_\_\_.

Dated this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_.

---

Petitioner Signature

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

---

Petitioner Name

12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

---

Address

Unincorporated Township of Long Hollow Crossing, SD 01234-9999

---

City, State, Zip Code

555-0142 ext. 44821

---

Phone Number

COUNTY OF Oglala Lakota

JUDICIAL CIRCUIT

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam  
(Name of Applicant for Expungement)  
Petitioner.

## ADMISSION OF SERVICE

*I declare under penalty of perjury under the law of South Dakota that the foregoing is true and correct. Signed on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ at \_\_\_\_\_.*  
(Date) (Month) (Year) (City or other location, and State)

\_\_\_\_\_  
States Attorney Signature

States Attorney Name

## States Attorney Address

City, State, Zip Code

---

Phone Number

COUNTY OF Oglala Lakota

JUDICIAL CIRCUIT

Petitioner.

## STATEMENT OF MAILING

## **INSTRUCTIONS AND FORM ON WAIVER OF HEARING**

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at [ujssrlhelp@uj.s.state.sd.us](mailto:ujssrlhelp@uj.s.state.sd.us).

### **IMPORTANT NOTICE**

If you are seeking to waive the hearing on your Motion for Expungement, it will need to be agreed upon by the States Attorney and/or the office who was assigned to your criminal case as well as the victim in your case, if there was one. The defendant of the criminal case, the State's Attorney, and the victim, if there was one, will each need to complete and sign their own waiver.

### **As the Petitioner you will need to complete this form you will need to:**

1. Fill in the caption.
2. Fill in your name on the line provided.
3. Enter your criminal case number.
4. Mark the Petitioner's Box
5. Sign and date.
6. Provide a Waiver of Hearing UJS-392 to the States Attorney and victim, if there was one, for their signature by completing the following:
  - a) Fill in the caption.
  - b) Enter in the case number where prompted.
  - c) Mail a copy to each with a self-addressed stamped envelope.
  - d) File with the Clerk of Court once you receive the document(s) back.

IN CIRCUIT COURT

JUDICIAL CIRCUIT

|                                                                                                                                                                                                                     |                                                                                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| <p>IN THE MATTER OF THE EXPUNGEMENT<br/>OF RECORDS RELATED TO:</p> <p><u>Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam</u><br/><i>(Name of Applicant for Expungement)</i></p> <p>Petitioner.</p> | <p>Case No.: <u>2026-CR-900123-EXTENDED-CASE-IDENTIFIER</u></p> <p><b>WAIVER OF HEARING</b></p> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|

Pursuant to SDCL § 23A-3-29 I, \_\_\_\_\_, voluntarily waive my right to a hearing on the Motion for Expungement that was filed regarding criminal case 2026-CR-900123-EXTENDED-CASE-IDENTIFIER. I am the: (check one)

☐ Petitioner                      ☐ Prosecutor                      ☐ Victim

I understand and acknowledge that I have a right to a hearing in this matter. I further understand that the court may require the filing of affidavits and may require the taking of evidence as it deems necessary.

I declare under penalty of perjury under the law of South Dakota that the foregoing is true and correct. Signed on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ at \_\_\_\_\_.

(Date) (Month) (Year) (City or other location, and State)

☐ Petitioner / ☐ Prosecutor / ☐ Victim Signature  
(check one)

---

Printed Name \_\_\_\_\_

---

Address

---

City, State, Zip Code

---

Phone Number

## **INSTRUCTIONS AND FORM ON NOTICE OF HEARING FOR EXPUNGEMENT OF RECORD**

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at [ujssrlhelp@uds.state.sd.us](mailto:ujssrlhelp@uds.state.sd.us).

### **To complete this form, you will need to:**

1. Complete only the caption of the Notice of Hearing UJS-393 and file with the Clerk of Court.
2. Once you receive the Notice of Hearing UJS-393 back, mail a copy to the States Attorney at least 14 days before the hearing is scheduled for.
3. Once the Notice of Hearing UJS-393 has been mailed to the States Attorney, complete the Statement of Mailing UJS-393 and file with the Clerk of Court.



STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF Oglala Lakota

\_\_\_\_\_ JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT  
OF RECORDS RELATED TO:

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

*(Name of Applicant for Expungement)*

Petitioner.

Case No.: 2026-CR-900123-EXTENDED-CASE-IDENTIFIER

**NOTICE OF HEARING FOR  
EXPUNGEMENT OF RECORD**

NOTICE IS HEREBY GIVEN that a Motion for Expungement has been filed by the above-named Petitioner. On the \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, at the hour of \_\_\_\_\_ : \_\_\_\_\_ ☐ am/ ☐ pm said motion will be heard by this Court before the Honorable \_\_\_\_\_, Presiding, at the Courtroom in the \_\_\_\_\_ County Courthouse, in the city of \_\_\_\_\_, South Dakota, or as soon thereafter as is convenient for the Court. Pursuant to SDCL § 23A-3-28, the Motion for Expungement shall be served at least fourteen days before the above hearing upon the office of the attorney who prosecuted the crime or violation, or who had authority to prosecute the charge if no accusatory instrument was filed.

Dated the \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_.

\_\_\_\_\_  
Circuit Court Judge/Clerk of Court

ATTEST:

\_\_\_\_\_  
Clerk of Court

By: \_\_\_\_\_  
Deputy Clerk of Court

COUNTY OF Oglala Lakota

JUDICIAL CIRCUIT

Alexandrina-Katharine Montgomery-Vandenberg-Oyeleran Fitzwilliam  
(Name of Applicant for Expungement)  
Petitioner.

## STATEMENT OF MAILING

(Name)

(Street Address)

(City, State, Zip Code)

and mailing, with sufficient postage, in the United States Mail from \_\_\_\_\_  
(City and State)

I declare under penalty of perjury under the law of South Dakota that the foregoing is true and correct. Signed on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ at \_\_\_\_\_.

(Date) (Month) (Year) (City or other location, and State)

---

Petitioner Signature

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

---

Petitioner Name

12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

---

Address

Unincorporated Township of Long Hollow Crossing, SD 01234-9999

City, State, Zip Code

555-0142 ext. 44821

---

Phone Number

IN THE MATTER OF THE EXPUNGEMENT OF  
RECORDS RELATED TO:

Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran Fitzwilliam

(Name of Applicant for Expungement)  
Petitioner.

Case No.: 2026-CR-900123-EXTENDED-CASE-IDENTIFIER

CRI No.: 2026-CR-900123-EXTENDED-CASE-IDENTIFIER

**ORDER ON MOTION FOR  
EXPUNGEMENT**

☐

Granted

☐

Denied

The above-entitled matter came before this Court on the Petitioner's Motion for Expungement on the \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_. The Court having reviewed the Petitioner's Motion for Expungement and all evidence presented on said motion, being fully advised in the premises, and otherwise for good cause shown,

**FINDS** that the Court has jurisdiction over the parties and the subject matter herein; and further

**FINDS** that the Court is satisfied by clear and convincing evidence that the ends of justice and the best interests of the public as well as the Petitioner or the arrested person will be served by the entry of an order of expungement.

**WHEREFORE, IT IS HEREBY ORDERED**, pursuant to SDCL § 23A-3-31, that all official records related to the above referenced case, other than the non-public records to be retained by the Division of Criminal Investigation, be sealed along with all records relating to the Petitioner's arrest, detention, indictment, information, trial, and disposition.

Dated this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_.

BY THE COURT:

ATTEST:

\_\_\_\_\_  
Circuit Court Judge

\_\_\_\_\_  
Clerk of Court

By: \_\_\_\_\_  
Deputy Clerk of Court

## **INSTRUCTIONS ON NOTICE OF ENTRY OF ORDER OF EXPUNGEMENT**

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at [ujssrlhelp@uds.state.sd.us](mailto:ujssrlhelp@uds.state.sd.us).

### **IMPORTANT NOTICE**

Whether or not your request for an expungement on a record of arrest is granted, the Judge will enter an order granting or denying and a Notice of Entry will need to be filed with the Clerk of Court.

### **To complete this form, you will need to:**

1. Complete the caption.
2. Enter the day the Order was signed by the Judge, the name of the Judge who signed the Order, and the County in which it was filed in.
3. Sign and date.
4. Complete page 2, the Statement of Mailing UJS-395.
5. Mail a copy of the Notice of Entry UJS-395 and a copy of the Order on Motion for Expungement UJS-394 to the States Attorney.
6. File the Notice of Entry and the Statement of Mailing UJS-395 with the Clerk of Court.

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF Oglala Lakota

                     JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT  
OF RECORDS RELATED TO:

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

(Name of Applicant for Expungement)  
Petitioner.

Case No.: 2026-CR-900123-EXTENDED-CASE-IDENTIFIER

**NOTICE OF ENTRY OF ORDER FOR  
EXPUNGEMENT**

**PLEASE TAKE NOTICE** that pursuant to SDCL § 23A-3-30, the Order on Motion for Expungement was entered in the above-entitled matter on the \_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, by the Honorable \_\_\_\_\_ and duly filed by the Oglala Lakota County South Dakota Clerk of Courts. A copy of said Order of Expungement is attached hereto and served upon the office of the prosecuting attorney.

Dated this \_\_\_\_ day of \_\_\_\_\_, 20 \_\_\_\_.

\_\_\_\_\_  
Petitioner Signature

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

\_\_\_\_\_  
Petitioner Name

12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

\_\_\_\_\_  
Address

Unincorporated Township of Long Hollow Crossing, SD 01234-9999

\_\_\_\_\_  
City, State, Zip Code

555-0142 ext. 44821

\_\_\_\_\_  
Phone Number

## STATEMENT OF MAILING

I, Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam (full legal name of Petitioner), being sworn, state that on the \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_, I served a copy of the Order on Motion for Expungement and a copy of the Notice of Entry of Order on Motion for Expungement by placing a true and correct copy of the document in an envelope addressed to the following named individual: \_\_\_\_\_ at the following mailing address: \_\_\_\_\_ in the City of \_\_\_\_\_, State of \_\_\_\_\_, Zip Code \_\_\_\_\_ and depositing the envelope, with sufficient postage, in the United States Mail at (city and state mailed from). \_\_\_\_\_

*I declare under penalty of perjury under the law of South Dakota that the foregoing is true and correct. Signed on the* \_\_\_\_\_ *day of* \_\_\_\_\_ *at* \_\_\_\_\_  
(Date) (Month) (Year)  
(City or other location, and State)

\_\_\_\_\_  
Petitioner Signature

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

\_\_\_\_\_  
Petitioner Name

12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

\_\_\_\_\_  
Address

Unincorporated Township of Long Hollow Crossing, SD 01234-9999

\_\_\_\_\_  
City, State, Zip Code

555-0142 ext. 44821

\_\_\_\_\_  
Phone Number